

#	Case Name	Tentative
50.	Navarrete v. Lyft, Inc. 2026-01564155	Defendant Lyft Inc.'s Demurrer is OVERRULED and the Motion to Strike is DENIED. Lyft demurs to the negligence cause of action on the grounds it fails to state sufficient facts to constitute a cause of action against Lyft. Alternatively, Lyft moves to strike allegations in the Complaint related to claims Lyft is liable to Plaintiff pursuant to Public Utilities Code section 5354. Demurrer A demurrer must dispose of an entire cause of action to be sustained. (<i>Thompson v. Spitzer</i> (2023) 90 Cal.App.5th 436, 451-452.) "Thus, a court must overrule a demurrer to a cause of action if it is based on at least one viable theory of liability." (<i>Id.</i> at 452.) Lyft attacks the negligence cause of action on the grounds that no vicarious liability exists under Public Utilities Code section 5354. However, this is not the only basis for liability alleged in the Complaint. The Complaint also alleges Lyft negligently hired, employed, retained, supervised, and managed Defendant Saleh. (Complaint, ¶ 17.) Lyft does not address this theory of liability in the demurrer or the elements to state a cause of action for negligence. Therefore, the demurrer to negligence cause of action is OVERRULED. Motion to Strike Lyft moves to strike allegations that it is vicariously liable for the actions of Defendant Saleh pursuant to Public Utilities Code section 5354 and common carrier allegations. A court may "[s]trike out any irrelevant, false, or improper matter inserted in any pleading." C.C.P. § 436(a). Lyft is a licensed Transportation Network Company ("TNC") pursuant to Pub. Util. Code § 5431, subd. (c)). A TNC is defined as "a corporation...operating in California that provides prearranged transportation services for compensation using an online-enabled application or platform to connect passengers with drivers using a personal vehicle." (Pub. Util. Code § 5431, subd. (c); see also, <i>City and County of San Francisco v. Uber Techs., Inc.</i> (2019) 36 Cal.App.5th 66, 71 [describing Lyft as a TNC].) As a TNC, Lyft is bound by rules, policies, and procedures set forth by the California Public

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		Utilities Commission and Public Utilities Code, including for example, extensive insurance requirements (See Pub. Util. Code §§ 5432-5435), and rules relating to passenger information disclosure (Pub. Util. Code § 5437). Pub. Util. Code, § 5354 states: "In construing and enforcing the provisions of this chapter relating to the prescribed privileges and obligations of the holder of a permit or certificate issued hereunder, the act, omission, or failure of any officer, agent, or employee, or person offering to afford the authorized service with the approval or consent of the permit or certificate holder, is the act, omission, or failure of the permit or certificate holder." (Pub. Util. Code, § 5354 (emphasis added). This language would suggest that Lyft is liable for the acts/omissions of any "person offering to afford the authorized service with the approval or consent of the permit or certificate holder", which could include Lyft drivers. Lyft argues Section 5354 was not designed to create vicarious liability, but designed to give the California Public Utilities Commission tools to enforce permit holder obligations. Section 5354's limiting phrase "[i]n construing and enforcing the provisions of this chapter" – expressly limits Section 5354 applicability to the CPUC's enforcement of permit holder obligations under Chapter 8 of the Public Utilities Code which governs Charter-Party Carriers. The statute does not extend to acts or conduct outside of this regulatory chapter, including common-law negligence claims. Lyft further argues that neither the TNC Regulations nor any CPUC decision create any statutory basis for vicarious liability. The absence of such decisions, however, does not preclude the reasonable interpretation of Section 5354. If the plain, commonsense meaning of a statute's words is unambiguous, then plain meaning controls. (<i>City of Los Angeles v. City of Los Angeles Employee Relations Bd.</i> (2016) 7 Cal.App.5th 150, 163.) Here, the plain language of Section 5354 states "the act, omission, or failure of any....person offering to afford the authorized service with the approval or consent of the permit or certificate holder [the Lyft driver] is the act, omission, or failure of the permit or certificate holder [Lyft]." (emphasis added.) Thus, it's not obvious based on the statutory language that the negligence or the wrongful acts of a driver could not legally be imputed to the TNC.

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		Moreover, there is no language in Section 5354 that precludes negligence claims. In fact, Chapter 8 contemplates acts of negligence by requiring a TNC and any participating driver to maintain transportation network company insurance. (Pub. Util. Code § 5433, subd. (a).) Section 5433 states: "This article does not limit the liability of a transportation network company arising out of an automobile accident involving a participating driver in any action for damages against a transportation network company for an amount above the required insurance coverage." Thus, acts of negligence arising from automobile accidents are contemplated under Chapter 8. Therefore, the Court finds Section 5354 could provide a basis for Lyft's liability for the acts of defendant Saleh. Lyft also contends that there is no private right of action for violating Section 5354. Plaintiff, however, is not suing Lyft for violating Section 5354. Rather the complaint alleges a legal basis for holding Lyft liable within the existing negligence claim. Section 5354 establishes the scope of liability rather than creating an independent right to sue. In this case, Plaintiff has alleged a claim for negligence against Lyft. Lyft next argues that Plaintiff has no standing to sue because plaintiff was not a passenger. "The common carrier designation does not extend to cases where the relation of carrier and passenger does not exist." (<i>Simon v. Walt Disney World Co.</i> (2004) 114 Cal.App.4th 1162, 1170.) But the text of Section 5354 does not state it is limited simply to passengers. Moreover, the heightened duty of care based on a carrier-passenger relationship applies only where such a relationship exists at the time of the alleged harm. (See <i>Jane Doe No. 1 v. Uber Technologies, Inc.</i> (2022) 79 Cal.App.5th 410, 420-421.) For claims against the common carrier by non-passengers, ordinary negligence principles would apply. (See <i>Squaw Valley Ski Corp. v. Superior Court</i> (1992) 2 Cal.App.4th 1499, 1506-1507.) Based on the above, Lyft has not established that the language it seeks to strike is irrelevant, false or improper. Therefore, the motion to strike is DENIED. Defendant Lyft shall file an answer within 10 days. The case management conference is continued to October 12, 2026 at 9:00 a.m. Lyft shall give notice of this ruling.

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51.	Sanchez v. Perez 2022-01275016	Plaintiff Rigoberto Sanchez's motion to enforce the judgment is DENIED without prejudice. There is no proof of service on the motion. Further, plaintiff already has a money judgment. Plaintiff is encouraged to consult with the court's self-help desk concerning enforcement of money judgments, and proofs of service. The clerk shall give notice.
52.	Bernadette Jean McCann as trustee for The Bernadette Jean McCann under instrument dated November 18, 2019 v. Rubicon Builders & Development, Inc. 2025-01488820	Defendants Rubicon Builders & Development, Inc., Liat Natan, and Ofir Chanael's Motion to Compel Arbitration is GRANTED. (Code Civ. Proc. §1281.2.) Plaintiff Bernardette Jean McCain individually and as trustee for The Bernardette Jean McCann 2019 Trust for the Benefit of Bernardette Jean McCann under instrument dated November 18, 2019 shall submit her claims against Defendants Rubicon Builders & Development, Inc., Liat Natan, and Ofir Chanael to binding arbitration pursuant to the terms of the agreement to arbitrate contained in the Home Improvement Contract dated August 13, 2024 (see ROA 19, Ex. A) and subject to the modifications to the agreement provided in this Order. The remainder of this Action is STAYED upon the filing by plaintiff of proofs of service on Defendants Agape Civil Engineering, Inc. and Stephen Miller, RCE. Any stay is without prejudice to Defendants Agape Civil Engineering, Inc. and Stephen Miller, RCE moving to compel Plaintiff to arbitrate her claims. Any stay is also subject to further order of this Court. A Status Conference RE Binding Arbitration is set for January 29, 2027 at 9:00 a.m. in Department C28. Five days before the status conference, the parties are ORDERED to file a joint status conference statement. The case management conference is VACATED. <u>General Legal Standard</u> A party seeking to compel arbitration must demonstrate the existence of a written agreement to arbitrate the controversy by preponderance of the evidence, and the party resisting arbitration bears the burden of proving any defense to enforcement. (Code Civ. Proc., § 1281.2; <i>Engalla v.</i>